

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1034

By: Kendrix

AS INTRODUCED

An Act relating to sunset; amending 67 O.S. 2021, Section 305, as amended by Section 1, Chapter 189, O.S.L. 2022 (67 O.S. Supp. 2024, Section 305), which relates to the Archives and Records Commission; re-creating the Commission; and modifying the termination date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 67 O.S. 2021, Section 305, as amended by Section 1, Chapter 189, O.S.L. 2022 (67 O.S. Supp. 2024, Section 305), is amended to read as follows:

Section 305. There is hereby re-created until July 1, ~~2025~~ 2026, in accordance with the Oklahoma Sunset Law, the Archives and Records Commission, hereinafter referred to as the Commission, to be composed of one member to be appointed by the Governor who shall serve as Chairman, the State Librarian as Vice Chairman and Secretary, the Lieutenant Governor, the State Auditor and Inspector and the State Treasurer as members. Any member may appoint and designate a subofficer or employee as his or her proxy for purposes of carrying on the duties of the Commission. The Commission shall

1 have sole, entire and exclusive authority of the disposition for all
2 public records and archives of state officers, departments, boards,
3 commissions, agencies and institutions of this state. The authority
4 herein granted shall not apply to records and archives of political
5 subdivisions of the state; provided, however, Section 305 et seq. of
6 this title shall not apply to the confidential records and files of
7 the Oklahoma Tax Commission which are exempt from all provisions of
8 this act.

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